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Provision of April 27, 2023

Register of provisions

No. 172 of April 27, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the report from the Guardia di Finanza – Operational Command of Cosenza, transmitted by note of May 25, 2022, from the Special Privacy and Technological Fraud Protection Unit, which reports on a control

carried out on May 11, 2022, at the individual business Checcoro of Nigro Francesco, located in Cosenza (CS), via Costantino Mortati 19, engaged in the activity of "wholesale trade of non-ferrous materials," of which Mr. Nigro Francesco is the owner, where the presence of 4 operational surveillance cameras was found in

the absence of appropriate informational signs;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

WHEREAS

1. The report received and the initiation of the proceeding.

By note received on May 25, 2022, a

report was submitted, drafted by the Operational Command of

Cosenza of the Guardia di Finanza, prepared during a control carried out on May 11, 2022, at the individual business Checcoro of Nigro

Francesco, located in Cosenza (CS), via Costantino

Mortati 19, engaged in the activity of "wholesale trade of non-ferrous materials," of which Mr. Nigro Francesco is the owner, where the presence of 4 cameras was found, placed

inside the aforementioned commercial establishment, in the absence of the required informational signs.

By note of October 21, 2022 (prot. No. 57467), the Office notified the party of the initiation of the sanctioning procedure pursuant to Article 166, paragraph 5, of the

Code for violations of Article 5, paragraph 1, letter

a) and 13 of the Regulation.

By note of November 17, 2022, Mr. Nigro Francesco

submitted defensive writings stating that at the time

of the control "the informational signs had been

temporarily removed to be repositioned as they were not fully compliant and were in the process of being updated by a

specialized company" and that in the days following the

control, Mr. Francesco Nigro "arranged to

place the appropriate informational signs

required by law in relation to the areas subject to video surveillance,” substantiating his statement with relevant photographic documentation.

2. The legal framework of the processing carried out

The use of video surveillance systems can result, depending on the positioning of the cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, with the principle of transparency which requires that “data subjects must always be informed that they are about to enter a surveillance area.”

For this purpose, the data controller must place appropriate informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on video surveillance, published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that “Regarding video surveillance, the most important

information must be indicated [by the controller] on the warning sign itself (first level), while other mandatory details can be provided by other means (second level). The guidelines also provide that “Such information can

be provided in combination with an icon to give, in a clearly visible, intelligible, and clearly legible manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations.” The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) “to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made, it emerged that the video surveillance system described in point 1 is active and operational; it is reported, in the report that “the monitor displayed all the images captured by the aforementioned cameras” (cf. page 4 of the report).

What was stated in the defensive memoranda regarding the temporary absence of signs at the time of the verification carried out by the Financial Police does not appear to be supported by adequate objective elements. It is therefore proven, in this specific

case, that the party has processed personal data through a video surveillance system, in the absence of the required information notice. Such conduct is in contrast with what is established by Article 13 of the Regulation, according to which the data controller is obliged to provide the data subject with all the information regarding the essential characteristics of the processing.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation. The processing of personal data carried out by the sole proprietorship is therefore unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a) (principle of transparency) and 13 (information) of the Regulation. The violation established as described in the reasoning cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation). It should be noted that the party, in its defense submissions, stated that it had taken steps to affix the required information signs regarding the presence of cameras, sending photographic documentation proving the claims made.

5. Order of injunction. The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an order of injunction (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, the unlawfulness of which has been established, as stated above, in relation to Articles 5, paragraph 1, letter a), 13 of the Regulation and Article 114 of the Code. With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been taken into account: regarding the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility associated with the failure to fulfill the obligation to provide information to the data subjects; the absence of specific previous violations by the company related to breaches of the data protection regulations; the circumstance that the sole proprietorship, as the data controller, submitted defense writings declaring that it had correctly affixed suitable information signs, proving the claims made with appropriate documentation; It is also believed that the economic conditions of the offender, determined with reference to the financial statements for the year 2022, are relevant in this specific case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation). Based on the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €2,000.00 (two thousand) for the violation of Articles 5 and 13 of the Regulation. In this context, also considering the type of violation established, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed. Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by Mr. Francesco Nigro through the use of the video surveillance system installed at the premises of the sole proprietorship engaged in the activity of "wholesale trade of non-ferrous materials," located in Cosenza (CS), via Costantino Mortati 19, of which he is the owner, as stated in the reasoning, for the violation of Articles 5 and 13 of the Regulation;

ORDERS Mr. Francesco Nigro, owner of the sole proprietorship engaged in the activity of "wholesale trade of non-ferrous materials," located in Cosenza (CS), via Costantino Mortati 19, VAT No. 03726410784, to pay the sum of €2,000.00 (two thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

INSTRUCTS therefore Mr. Francesco Nigro, owner of the sole proprietorship engaged in the activity of "wholesale trade of non-ferrous materials" located in Cosenza (CS), via Costantino Mortati 19, to pay the sum of €2,000.00 (two thousand), according to the methods indicated in the attachment, within 30 days.

from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the option remains for the offender to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, April 27, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei